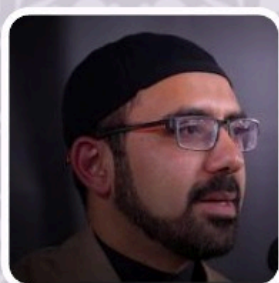


Nature of the Islamic Divine Command Ethical Framework



**What is the Nature of the Islamic
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and is there a role in this for moral
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Ali Alsamail

Introduction

There are a variety of theories on meta-ethics, each presenting different claims about the foundations for morality. Divine Command Theory is an ethical theory based on the claim that morality depends on God. The theory asserts that what is morally right or obligatory to do is what God commands. There are naturally different versions of Divine Command Theory depending on the particular religion or belief system¹.

Other ethical theories are based on a moral intuition: a shared knowledge that all humans share, knowledge that they come to without needing any proof. Many different meanings have been given for intuition, but this essay will concern itself with the definition given by Ross, which will be explained later.

When trying to conceptualise an Islamic ethical framework, it is impossible not to look at this in terms of Divine Command Theory. The Holy Qur'an states clearly in many places that what God commands through His Holy Prophet is morally right, and what God prohibits is morally wrong, and the concept of a duty to God (*taqwa*) is a theme that runs very strongly through the entire Holy Qur'an.

“What the Apostle give you, accept it, and from whatever he forbids it, keep back, and be careful of your duty to Allah” (The Holy Qur'an,59:7).

At the same time, we find that the Holy Qur'an also frequently refers people to the intellect (*'aql*) in relation to moral commands:

“Say, come I will recite what your Lord had forbidden to You...this He has enjoined you with that you may understand (ta'qiloon)” (The Holy Qur'an, 6: 151).

This essay will aim to answer some questions. The first is the nature of the dependence of morality upon God's commands when it comes to the Islamic version of a Divine Command framework. The second is

whether there is a role for moral intuition within this theory. In doing this, we will need to answer several objections against divine command theory. This will give us a firmer understanding of the Divine Command theory in question. We will also need to come to understand what is meant by moral intuition and how this can have a place within a Divine Command system.

The Strengths of Divine Command Theory

While it may make sense for followers of a particular religion to adhere to some type of divine command theory, is there any benefit in discussing such a theory from a secular point of view? While at first it may seem futile to discuss an ethical system based on divine commands with, for example, an atheist, on further consideration, there are strengths and advantages to this system which are absent from other ethical frameworks, and so this is an alternative worthy of discussion for anyone.

Perhaps the main advantage is that Divine Command Theory provides an objective metaphysical foundation for morality. If we agree that there are moral objective truths, then it is logical that the source of these moral truths is a personal moral being– God. If the origin of the universe was non–moral, then it is impossible to answer the question of where these moral objective truths come from. Moral properties cannot come into existence from non–moral origins².

Another advantage of Divine Command theory is the authoritativeness of God. This theory helps answer the question ‘why be moral’. Kant answered this question by explaining that we must believe that there is a God who will help us meet the demands of moral law, for otherwise morality is too much for us to bear. He explains that acting morally in this world does not guarantee happiness, so the only sound moral motivation is that God will reward us for being moral in the afterlife³. William L Craig further explains that a theistic ethical framework gives us a reason to act in ways that run counter to our self–interest, because theistic frameworks give great merit to such actions. In a non–theistic framework, it is difficult to provide a moral motivation for such actions⁴.

The Moral Motivation in Divine Command Theory

An objection to Divine Command Theory is that while it does, as Kant argues, provide a motivation to be moral, this motivation is not morally worthy or morally mature. Being moral for the sake of reward or to avoid punishment is not a worthy motivation.

There are a number of answers to this objection. The first is that while reward and punishment in an afterlife are part of Divine Command Theory, these are only an initial motivation, a facilitator to develop a more mature motivation. This latter motivation can be expressed in a number of ways.

The first is the understanding that being moral is necessary for humankind to flourish. This fits in with Divine Command Theory, which asserts that the source of morality is a personal moral being– so it makes sense that this being set in place a system where morality is necessary for flourishing. That is,

the best way to flourish in life is to be moral, because we live in a universe whose source is a personal moral being. Once we know this, the motivation to be moral becomes not only recompense in an afterlife, but seeking the ultimate flourishing of the individual and community. This line of thinking is supported by a number of statements in the Holy Qur'an, and would be part of any Islamic Divine Command Theory.

“And whoever does good, it is for his own soul, and whoever does evil, it is against it” (The Holy Qur'an, 41:46).

Augustine also develops a similar view, expressing it in the context of love for God. He says that ethics is the pursuit of the supreme good, which provides the happiness that all humans seek. He argues that the way to achieve this happiness is to love God, and then orient our other loves in relation to this, proportional to their value. In this way, Augustine presents the motivation for doing what is morally right to be the pursuit of ultimate happiness for mankind, achieved through love of God, which requires obedience to His commands⁵.

As per these explanations, we can see that the motivation to be moral within a divine command framework is not only recompense in an afterlife, but seeking the ultimate happiness and flourishing of mankind by obeying divine commands.

The Euthyphro Dilemma

This is a famous and important paradox related to Divine Command Theory. It was initially presented by Socrates in his dialogue with Euthyphro. We can rephrase Socrates' original question in this way: “Is a particular action morally right because God commands it, or does God command a particular action because it is morally right?”

The Arbitrary Whim Problem

If a divine command theorist answers in the affirmative to the first question, they are faced with the arbitrary whim problem. Would it be morally right to inflict suffering if this was God's command? Most divine command theorists would not be willing to accept an arbitrary foundation for morality. Looking at Islamic divine command theory, while some Ash'arites might accept this arbitrariness, other Islamic schools of thought would not. The Holy Qur'an clearly states that God would not command an indecent act, which indicates that the foundations for morality are not arbitrary.

“Surely Allah does not enjoin indecency, do you say against God what you do not know?” (The Holy Qur'an, 7:28).

“Say: My Lord has enjoined justice...” (The Holy Qur'an, 7:29).

The Divine Command theorist must therefore present a source for moral rightness which is not arbitrary.

If however, they avoid this problem by answering in the affirmative to the second question in the Euthyphro Dilemma, then they face a different problem.

The Problem related to God's Sovereignty

If God commands a particular action because it is morally right, then this may mean that God is a mere recogniser of good and evil, and is not the source of morality. It also suggests there is a higher realm, above God, which is the source of morality, and which God accesses when legislating moral good and evil. This takes away from God's sovereignty, and most divine command theorist would not be willing to concede God's sovereignty⁶.

Human Nature as a Criterion for Morality

The first answer to the dilemma is related to human nature. The proponents of this answer argue that what is morally right should be in line with our human nature, so that we will be fulfilled as human beings. Human nature is such that certain actions fulfil us and help us function properly while others do not. For example, lying or cheating do not fulfil us.

It is God that created us with this particular nature. Therefore, when it comes to God's commands, he does not arbitrarily decide what is morally right or wrong. Rather, he commands those actions which fulfil our nature, and prohibits those which hinder us from being fulfilled. This resolves the problem of the arbitrary nature of God's commands, by setting a criterion for God's command (i.e. human nature) without taking away from God's sovereignty (because He set this nature in place).

However, the question that remains is why it is that God chose *this* particular nature for us? To answer this, it is useful to look at God's characteristics. Most divine command theorists would argue that God holds all perfections– including mercy, knowledge, power and love. The philosophical principle of the compatibility of the cause and the effect would indicate that the nature God created would take on all the perfections (in potentiality) that He possesses. Therefore, this is the best possible nature, giving it a value against which moral rightness can be measured⁷.

The Supreme Criterion for Morality: the Nature of God

In discussing human nature, we touched upon the nature of God. Alston explains that God does command what is morally right, but that this is not because he consults an independent realm as the supreme standard of morality. Rather, God acts according to His necessarily good character. As explained above, God holds all perfections, and so his nature is by definition good. This resolves the problem of God's sovereignty, because God is not consulting an independent realm, but rather commanding in accordance with His own essential nature.

One may argue that arbitrariness is still a problem, because God's nature can be considered to be

arbitrary. Alston responds by arguing that when we ask ‘by virtue of what good supervene on these characteristics?’ we must ultimately come to a general principle or individual paradigm. He then argues that it is no more arbitrary to invoke the nature of God as the supreme moral standard than it is to invoke a supreme moral principle⁸.

Islamic divine command theory, particularly in the Imami school of thought, is based on this explanation of the nature of God being the supreme moral standard⁹. There are also potential references to this in the Holy Qur’an, where God is described as having prescribed certain attributes upon Himself.

“... Your Lord has ordained Mercy on Himself” (The Holy Qur’an, 6:54).

One way that such Qur’anic statements have been explained by Muslim theologians is that at the level of God’s Acts, God does and commands what is right. The criterion for what is right, however, is not something independent of God, but is the nature of God, at the level of God’s Essence¹⁰.

The Omnipotence Objection

One final point remains in relation to the Euthyphro Dilemma. If we accept that God commands what is morally right, are we not saying that God cannot command what is morally wrong? Does this limit God’s power: how could there be anything that an all-powerful being cannot do?

To answer this objection, we need to understand the true meaning of omnipotence, which is that God can do all things which are not logically impossible. Something such as making a round corner, or God killing Himself, are logical impossibilities and so in reality they do not have any existence. This takes them outside the realm of omnipotence¹¹.

God commanding something that is morally wrong is not logically possible, because according to the above theory it is against His Nature, and so it falls outside the scope of His omnipotence.

Is there a Place for Moral Intuition?

Now that we have had a detailed discussion on divine command theory, in particular in relation to Islamic texts, the question that we want to pose in this essay is whether there is a place for moral intuition or a ‘moral intellect’ within a divine command system. Before we can answer the question, we need to clarify the meaning of moral intuition for the purposes of this essay.

What is Moral Intuition?

While several meanings have been presented for moral intuition, in this essay we focus on the meaning presented by Ross. Ross argues that we have certain clear intuitions from which we construct our knowledge about the nature of our moral duty. He argues that these intuitions are non-inferential,

because they are self-evident or knowable on the basis of an understanding alone. An example that Ross gives is that we have a responsibility to keep our promises, and that this is self-evident. He argues that we can trust this knowledge and that it gives us certainty¹².

What is appealing about Ross' theory is that when he considers a responsibility self-evident, he does not mean that it is obvious to anyone who reflects on it. He says that a responsibility is self-evident 'not in the sense that it is evident from the beginning of our lives, or as soon as we attend to the proposition for the first time, but in the sense that when we have reached sufficient mental maturity and have given sufficient attention to the proposition, it is evident without any need of proof, or of evidence beyond itself. It is self-evident just as a mathematic axiom, or the validity of a form of inference, is evident.¹³

In the above explanation, Ross makes an analogy with mathematics, and this is useful. Just as in mathematics we apprehend that $1+1=2$ by apprehending that 1+1 matches makes 2 matches and 1+1 apples make 2 apples, and so on. We use a process of intuitive induction to apprehend the algorithm in the particular cases after repeated exposure to particular examples of its application. We apprehend that it is right to keep promises by apprehending that it is right to fulfil the promise made to John or the promise made to Jill. This leads us to apprehend the self-evident general principle of the duty in question¹⁴.

Ross further limits the meaning of self-evident duties, in that he does not claim that just because a duty is self-evident, by his definition, then it should be evident for any person who understands it. Rather only those who have attained sufficient mental maturity and given the proposition sufficient attention will realise it without proof. He explains that we may in fact fulfil a duty initially after we are given some sort of proof or legislative order to fulfil it. This is the initial reason for fulfilling it. However, as we mature and we give the duty due consideration, its rightness becomes self-evidence to us on its own¹⁵.

Ross presents a well-defined and sophisticated understanding of moral intuition which we can use as a basis for discussing whether there is a place for it in an Islamic divine command ethical framework.

Moral Intuition in Islam

Moral intuition or some sort of 'moral intellect' is certainly part of an Islamic ethical system. The Holy Qur'an refers mankind to their intellect when discussing moral duty. This can be seen in the very words the Qur'an uses for moral duties: *al-ma'roof* (that which is known to mankind), and for moral prohibitions: *al-munkar* (that which is strange to mankind). This is a reference to a moral intuition, which is aware of what is morally right (known) and morally wrong (unknown). Furthermore, the following is one of the main Qur'anic statements on moral duties, and it ends by referring mankind to a moral intellect.

"Say, come I will recite what your Lord had forbidden to You, that you do not associate anything with Him and show kindness to your parents, and do not slay your children for fear of poverty- We provide for you and for them- and do not draw night to indecencies, those of them which

hare apparent and those which are concealed, and do not kill the soul which Allah has forbidden except for the requirements of justice; this He has enjoined you with that you may understand (ta'qiloon)" (The Holy Qur'an, 6: 151).

Going back to Ross' theory of moral intuition: he set the criteria of sufficient mental maturity for coming to a realisation about self-evident moral duties. He does not go any further to explain this maturity or how it is to be attained. The Islamic ethical framework, based on the Holy Qur'an, does explain this. According to the Qur'an, the moral intellect develops and matures when a person turns away from their desires and allows himself to realise these intuitions without any obstruction. The term 'desires' here refers to base physical desires, as well as mere opinions which have no foundation in self-evident or theoretical knowledge.

"...Thus do we make the signs clear for a people who understand" (The Holy Qur'an, 30:29).

"Nay, those who follow their low desires without any knowledge, who can guide him whom Allah makes err..." (The Holy Qur'an, 30:30).

Mutahhari explains this further: humans have two types of drives. They have a drive to meet their physical needs such as food and shelter. He calls this the 'likes of the lower self'. At the same time, humans have more noble drives, such as the drive to help others, to be generous and so on. He calls these the 'likes of the higher self'. He argues that Islamic ethics is based on following the likes of the higher, nobler self, because this is based in a moral intuition that is part of human nature¹⁶.

In Islamic ethics then, there is a place for moral intuition. It is our intuition that leads us to realise certain self-evident moral duties. This intuition develops or matures if a person pays attention to their human nature, and the likes of the 'higher self'.

Do we have Moral Intuition?

We have discussed the meaning of moral intuition, and how it may apply as part of an Islamic ethical framework, but we still need to ask whether there is moral intuition at all.

One obvious objection to the presence of a moral intuition is that there is very little agreement on moral duties among humankind. If we all share the same intuition, there should be more agreement. Ross concedes that there is disagreement. He explains that moral diversity often rests not on disagreement about moral principles but about questions of fact. That is, the disagreements are about the attempts to apply the general principles to particular circumstances¹⁷.

There are however differences that cannot be explained in this way, such as differences about the 'comparative worth of different goods'. Ross explains that these disagreements should not undermine our confidence in objective moral truths. He draws an analogy with the natural sciences, arguing that there are often changes to scientific theories over time, but that in general we have a sense that science

progresses towards the truth. He argues that the same is true in ethics [18](#).

William Craig takes approach to the question. While there are moral disagreements, there are at the same time some moral values all humans agree on, in principle. The most basic of these is that justice is morally right. If it were not for a moral intuition that we all share, what is the source of such universal agreements? With this argument, Craig places the burden of proof back on those who deny the existence of a moral intuition to come up with a valid source for universal moral agreements [19](#).

The Role of Moral Intuition within a Divine Command Ethical Framework

We have so far discussed ethical frameworks based on divine command, as well as the arguments for the existence of moral intuition.

Applying these to an Islamic ethical framework, we know that in Islamic ethics what is morally right is what is commanded by God. At the same time, there are strong references within Islamic texts to a moral intellect or intuition. If we know our moral duty by referring to the commands of God, then what role does the intellect have?

Our previous discussion on human nature and the nature of God helps us answer this question. We said that according to modified divine command theories, God's nature is the source of morality. We also learnt that according to Augustine God created us with a certain nature, one that flows forth from God's nature, and is in compatibility with it. The role of the moral intellect then is that gives us a link to the very foundation and source of morality, because it is our tool for understanding (in limited form) God's nature. Our moral intuition then has the role of revealing to us the nature of God, to the limited extent of our understanding.

What then of divine command? If we are equipped with a moral intellect which gives us access to the very source of morality, why do we need divine commands to prescribe duties to us? Muslim theologians assert that divine commands guide us towards this moral intellect. We know that not all people apprehend moral intuitions, even though they are self-evident. As Mutahhari explained, in the Islamic ethical framework, this failure is due to the following of the likes of the lower self, and a lack of attention to the likes of the higher self. Divine commands steer us firmly away from the lower self to the higher self, and towards apprehending our moral intuitions.

The role of divine command then is to act as a guide towards the moral intellect. Firstly, by protecting that intellect from the influence of desires of the lower self. Secondly, by allowing us to start the process of intuitive induction which will lead us to the general principles we apprehend through moral intuitions. Initially, we are motivated to fulfil a particular duty by divine command, and after a process of intuitive induction, we come to an intuitive understanding of the inherent value of that duty.

This is perhaps why in the Qur'anic statement quoted earlier, a number of ethical commands are listed, and after the listing of these commands, the Qur'an states: 'so that you may understand'. The Qur'an is urging us to act morally purely in obedience to the divine command, which will lead us, through a process of induction, to know what is morally right by intuition.

This process elevates our moral motivation from obedience to divine commands based on a desire for reward or fear of punishment, to a realisation of the essential goodness of fulfilling the intuitive moral duties, to which we are guided by divine command. This goodness is based in the all-perfect nature of God, and this movement towards perfection becomes the moral motivation for humankind.

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